

From Complaint to Resolution: A Structured Audit of Grievance and Alternative Dispute Resolution Content in a Philippine Labor Relations Text

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Abstract

This study evaluated how a Philippine labor relations textbook prepares learners to distinguish, process, and resolve workplace grievances. A structured qualitative document analysis examined the 104-page Labor Relations and Negotiation manuscript, with close coding of Chapter IV on grievances and Chapter VII on remedies. The audit considered conceptual precision, procedural completeness, jurisdictional routing, authentic practice, assessment evidence, legal currency, and publication readiness. The source differentiates dissatisfaction, complaint, and grievance; identifies economic, working-condition, supervisory, policy, and interpersonal triggers; proposes an eight-step managerial response; and introduces human-resources intervention, mediation, counseling, arbitration, and Katarungang Pambarangay. These features create an accessible prevention-to-resolution narrative and appropriately emphasize recognition, investigation, documentation, consistency, appeal, training, and root-cause review. However, the text does not consistently distinguish a grievance in the broad human-resources sense from the technical grievance machinery used for disputes over a collective bargaining agreement or company personnel policies. The sequence omits the shop steward or bargaining representative, contractual steps and time limits, automatic referral of unresolved technical grievances to voluntary arbitration, and the Single Entry Approach for labor and employment issues. Mediation and conciliation are treated as interchangeable without qualification; arbitration is described too generally; and the barangay pathway is presented without adequate jurisdictional limits or exceptions. Chapter IV ends

with only three recall questions, while Chapter VII contains no applied case, form, process map, model settlement, or analytic rubric. The manuscript also requires correction of terminology, statutory references, grammar, and source documentation. No expert legal validation, learner-performance data, or classroom field test was supplied, so instructional effectiveness cannot be inferred. The article proposes a five-route decision model, evidence-centered learning tasks, and staged legal, editorial, accessibility, and user validation. The chapters provide a useful introductory foundation, but publication requires sharper legal distinctions, current institutional pathways, authentic case practice, and assessment criteria.

Keywords: employee grievance; grievance machinery; voluntary arbitration; alternative dispute resolution; labor relations education; document analysis

Introduction

Workplace grievances sit at the boundary between human-resource management, collective representation, labor law, and conflict resolution. A learner must be able to identify what kind of concern has arisen, who has authority to act, which procedure applies, what evidence is required, and when an unresolved issue moves to another forum. Treating every expression of dissatisfaction as the same type of case can create delay, procedural error, or false expectations about available remedies.

International guidance recognizes the value of fair and accessible grievance examination. The International Labour Organization's Examination of Grievances Recommendation identifies principles for presenting and examining grievances within an undertaking and for protecting workers who use the procedure (International Labour Organization, 1967). In the Philippine labor-relations system, the National Conciliation and Mediation Board distinguishes a grievance in the technical sense from a general complaint: technical grievance machinery addresses disputes about the interpretation or application of a collective bargaining agreement or the interpretation or

enforcement of company personnel policies (National Conciliation and Mediation Board, n.d.-a).

Other dispute-resolution routes serve different purposes. Republic Act No. 9285 promotes party autonomy and recognizes arbitration, mediation, conciliation, early neutral evaluation, and combinations of these processes as forms of alternative dispute resolution (Republic of the Philippines, 2004). The Single Entry Approach provides a time-bound conciliation-mediation gateway for labor and employment issues, while voluntary arbitration becomes the terminal step for unresolved grievances within the parties' grievance machinery when applicable (National Conciliation and Mediation Board, n.d.-a, n.d.-b). Katarungang Pambarangay, by contrast, has defined venue, party, subject-matter, and exception rules and should not be presented as a universal workplace remedy (Supreme Court of the Philippines, 1993).

The source manuscript, *Labor Relations and Negotiation*, was written by Ernesto V. Tumacole Jr. as a seven-chapter instructional book for professional and workplace learning (Tumacole, n.d.). Its fourth chapter explains grievances and their handling, while its seventh chapter presents remedies, out-of-court mechanisms, and barangay conciliation. Because the supplied manuscript contains no learner outcomes, legal-review certificate, or field-test report, this article evaluates instructional and publication design rather than effectiveness.

Purpose and Research Questions

The study asked four questions: (1) How does the text define and classify workplace grievance? (2) What procedural pathway does it teach from intake through resolution or appeal? (3) How accurately and clearly does it distinguish internal grievance handling, technical grievance machinery, mediation, conciliation, arbitration, the Single Entry Approach, and barangay conciliation? and (4) What revisions are required to produce legally current, assessable, accessible, and publication-ready learning material?

Methods

Design and Corpus

The research used structured qualitative document analysis with descriptive content counts. The complete 104-page manuscript was reviewed to understand its architecture, but the primary corpus consisted of Chapter IV, Grievance Affecting Labor Management, and Chapter VII, Remedies. Cross-references in the chapters on labor organizations, collective bargaining, strikes, and conflict were consulted when they affected the interpretation of the two focal chapters.

Chapter IV contains three learning objectives, a conceptual discussion, four stated grievance characteristics, five broad source categories, an eight-step handling sequence, management-practice guidance, and three end questions. Chapter VII presents four workplace responses, a short discussion of alternative dispute resolution, a three-process classification, and a Katarungang Pambarangay discussion. It does not provide learning objectives, a chapter summary, an applied exercise, a template, or a scoring tool.

Table 1

Instructional Inventory of the Focal Chapters

Component	Observed count	Instructional contribution
Learning objectives	3	All appear in Chapter IV; Chapter VII has none
Concept distinctions	3	Separates dissatisfaction, complaint, and formal grievance
Grievance characteristics	4	Links dissatisfaction to employment, expression, and expectations
Source categories	5 broad groups	Covers economic, working-condition, supervisory, policy, and interpersonal concerns
Handling steps	8	Moves from system design and recognition through appeal, review, and prevention
Remedy categories	4 workplace responses	Introduces HR intervention, mediation, counseling, and employment action
Named ADR processes	3	Introduces conciliation, mediation, and arbitration
End questions	3	Checks recall; does not assess route selection or procedural performance

Component	Observed count	Instructional contribution
Applied cases/forms/rubrics	0	No integrated practice artifact or scoreable performance evidence

Analytic Framework

Coding used six dimensions: conceptual precision; procedural completeness; routing and jurisdiction; due-process and role clarity; learning-task authenticity; and legal, editorial, bibliographic, and accessibility integrity. Conceptual precision examined whether dissatisfaction, complaint, general grievance, technical grievance, mediation, conciliation, arbitration, and adjudication were differentiated. Procedural completeness examined intake, documentation, investigation, representation, decision, appeal, time limits, escalation, closure, and prevention.

Routing quality was judged by whether the text connected a problem to the appropriate institutional path without implying legal advice. Authentic practice required learners to classify a case, select a route, create a document, conduct a structured meeting, justify a decision, or evaluate an outcome. Recall of a definition was coded separately from applied performance.

Procedure and Trustworthiness

The first pass mapped the grievance and remedy sections. The second pass coded each definition, procedural step, actor, forum, output, and learning task. The third pass compared the manuscript's descriptions with primary legal and institutional sources. The fourth pass audited terminology, internal consistency, references, navigation, and visible accessibility features. Claims were retained only when linked to an observable source component or an official text.

One analyst reviewed one manuscript version, so no inter-coder coefficient was calculated. To limit overstatement, the analysis separates legal accuracy, instructional potential, and proven effectiveness. The proposed model is a curriculum-design aid, not case-specific legal advice; current law, regulations, collective

bargaining agreements, and competent professional guidance remain controlling in actual disputes.

Results

Conceptual Framing of Grievance

Chapter IV's most useful conceptual move is its distinction among dissatisfaction, complaint, and grievance. Dissatisfaction may remain unexpressed; a complaint communicates dissatisfaction to a supervisor; and a grievance is formally presented to management or a union representative. This progression helps learners see that the same underlying experience changes procedurally when it is voiced, documented, or formally invoked.

The text also recognizes varied sources: pay and benefits, physical working conditions, supervision, policy or practice, isolation, and coworker conflict. Examples such as overtime differences, favoritism, unsafe or inadequate conditions, and inconsistent treatment give the discussion practical range. Its management guidance reinforces equal standards, employee handbooks, records, regular meetings, follow-up, and training.

The limitation is that the chapter moves between broad and technical meanings without marking the transition. A general employee concern may be a grievance in ordinary human-resources language, but grievance machinery in organized labor has a restricted contractual function. NCMB describes the technical issue as one arising from a collective bargaining agreement or company personnel policies and identifies the employer or union as parties to the question (National Conciliation and Mediation Board, n.d.-a). A revised text should teach both meanings in adjacent, labeled definitions and use classification cases to test the distinction.

Procedural Architecture

The eight-step sequence is the strongest procedural feature: establish a system, acknowledge the concern, investigate, hold a formal meeting, decide and act, offer appeal, review resolution, and address root cause. It encourages early recognition and closes with prevention rather than treating a decision as the end of the process.

Documentation and consistency are also emphasized in the surrounding guidance.

Several operational elements are missing. The sequence does not assign responsibility at each step; specify intake and acknowledgment records; distinguish investigator, decision maker, and appeal authority; address representation; set time frames; define confidentiality limits; or state what constitutes closure. It also does not explain how a contractual grievance moves through negotiated steps beginning at the lowest decision level, commonly with a shop steward or grievance officer, before unresolved issues proceed to voluntary arbitration.

The three end questions ask whether a grievance may be verbal, where it is filed, and whether it can lead to discipline. These check recall but do not show that a learner can classify allegations, plan fact-finding, distinguish a complainant from a respondent, draft a grievance, conduct a meeting, or justify escalation. The absence of a model grievance form, investigation matrix, outcome letter, appeal record, and closure checklist prevents the chapter from becoming a usable skills laboratory.

Dispute-Resolution Routes

Chapter VII correctly introduces a range of non-court responses and notes the difference between a facilitated settlement and a third-party decision. Its sequence from internal conversation through mediation, counseling, and more formal action reflects the value of resolving disputes as close to their source as fairness permits. The ADR discussion also recognizes cost, speed, participation, and sustainability as practical considerations.

Terminology and scope require revision. The manuscript uses DAR where ADR is intended, says mediation and conciliation are used interchangeably, and describes arbitration as a neutral's investigation followed by a decision. Republic Act No. 9285 lists mediation, conciliation, and arbitration as recognizable processes but does not erase their procedural distinctions (Republic of the Philippines, 2004). A teaching text should compare party control, neutral role, confidentiality, representation, evidence, decision

authority, enforceability, cost, and typical use rather than rely on one-paragraph definitions.

The labor-specific route is underdeveloped. The text does not explain the Single Entry Approach as an accessible conciliation-mediation process for labor and employment issues (National Conciliation and Mediation Board, n.d.-b). Nor does it connect unresolved technical grievances to voluntary arbitration as the terminal step in grievance machinery. Without this routing, a learner may understand generic ADR but still be unable to choose the appropriate labor-relations mechanism.

The Katarungang Pambarangay section is particularly vulnerable to overgeneralization. Barangay conciliation is subject to statutory limits and exceptions, including rules involving government actors, juridical entities, residence, workplace venue, urgency, and specified disputes (Republic of the Philippines, 1991; Supreme Court of the Philippines, 1993). The manuscript's account of response timing, settlement effect, repudiation, compliance, and execution is too compressed for safe instructional use. The topic should be presented as a bounded jurisdictional route, supported by a decision tree and an explicit direction to verify current rules.

Table 2

Proposed Five-Route Classification for Workplace Disputes

Route	Trigger	Core process	Evidence of closure
1	Early concern or dissatisfaction	Conversation, acknowledgment, clarification, immediate correction	Action note and follow-up
2	General complaint under workplace policy	Formal intake, fact-finding, meeting, decision, appeal	Reasoned outcome and closure record
3	CBA or covered personnel-policy dispute	Technical grievance machinery with representation and contractual steps	Settlement or referral to voluntary arbitration
4	Eligible labor or employment issue	Single Entry Approach or competent labor mechanism	Settlement, referral, or procedural disposition
5	Other dispute within a forum's jurisdiction	General ADR, administrative, judicial, or barangay process as legally applicable	Enforceable agreement, award, order, or dismissal

Publication and Assessment Readiness

The focal chapters have an intuitive prevention-to-resolution arc, but their instructional structures are asymmetric. Chapter IV has objectives and three questions; Chapter VII has neither objectives nor practice. Neither chapter supplies criteria for a correct route, a high-quality investigation, a fair meeting, an adequate written decision, or an effective settlement. Learners cannot calibrate their performance, and instructors cannot score complex work consistently.

Legal sources appear mainly in a consolidated bibliography. Pinpoint attribution is limited, article numbering is not consistently current, and distinctions among statutes, implementing rules, agency guidance, jurisprudence, and secondary commentary are not visible in the lesson body. Because dispute-resolution law and administrative procedures change, each legal proposition should have a traceable primary source and a date-of-verification note.

The manuscript also needs professional editing. Errors in spelling, grammar, acronyms, headings, spacing, and cross-references compete with legal meaning. The source uses long justified paragraphs, irregular lists, and image-based elements without documented alternative text or tagged structure. Publication readiness requires a clean source file, accessible styles, a stable heading ladder, live text, properly encoded tables, and navigable references.

Discussion

The two chapters contain the components of a useful learning pathway but do not yet connect them into a reliable decision system. Chapter IV explains how management can receive and investigate concerns; Chapter VII lists resolution options. The missing bridge is a classification-and-routing step that asks what right, policy, agreement, actor, and forum are involved before a procedure begins.

A revised five-route model can solve this problem. Route 1 addresses informal workplace concerns through early conversation and documented managerial action. Route 2 uses the enterprise grievance procedure for general complaints under company policy.

Route 3 uses technical grievance machinery when the issue concerns a CBA or covered personnel policy, with representation and eventual voluntary arbitration where required. Route 4 directs eligible labor and employment issues to the Single Entry Approach or other competent labor mechanism. Route 5 considers general ADR, administrative, judicial, or barangay processes only when their subject-matter and party requirements apply.

Learning tasks should produce evidence at every route. Students can classify ten short cases; identify missing facts; complete an intake form; prepare an investigation plan; conduct a grievance meeting; draft a reasoned outcome; select an escalation path; and audit a settlement for clarity and voluntariness. An analytic rubric can score issue identification, procedural fit, factual sufficiency, neutrality, rights awareness, documentation, communication, remedy, and prevention.

The chapters should also model procedural fairness without promising a particular legal result. Notice, an opportunity to respond, impartial fact-finding, representation where applicable, reasoned decisions, consistent treatment, appeal, confidentiality boundaries, records, and protection against retaliation are teachable safeguards. Presenting these as review questions helps learners examine both employee voice and management responsibility.

Revision and Validation Priorities

The first publication pass should correct terminology and replace unsupported legal summaries with verified primary-source explanations. A labor-law specialist should review grievance machinery, voluntary arbitration, the Single Entry Approach, and barangay jurisdiction. The second pass should rebuild the chapter sequence around classification, route selection, actor responsibility, documents, time limits, escalation, and closure. The third should add cases, forms, process maps, feedback, and analytic rubrics.

Validation should proceed in stages: legal and content review; copyediting and reference audit; accessibility testing; cognitive interviews with learners; instructor usability review; and a small field pilot. Outcome research can then examine route-selection accuracy, quality of written grievance documents, fairness reasoning, and

performance in simulated meetings. Until those stages are complete, the material should be described as an instructional draft rather than a validated grievance-resolution program.

Table 3

Publication and Validation Road Map

Stage	Required action	Verification evidence
1. Legal audit	Verify definitions, jurisdictions, procedures, time limits, and source dates	Specialist sign-off and legal-source matrix
2. Rebuild	Organize content by classification, route, actor, document, escalation, and closure	Complete process map and aligned objectives
3. Practice	Add cases, intake and grievance forms, meeting protocols, decisions, and appeals	Task specifications and model responses
4. Assess	Use analytic rubrics and misconception-specific feedback	Reliable scoring guide and instructor notes
5. Publish accessibly	Copyedit, tag structure, encode tables, and verify live text and navigation	Editorial and accessibility reports
6. Pilot	Test route selection, document production, fairness reasoning, and usability	Learner work, item analysis, observations, and revision log

Limitations

The study analyzes one version of one instructional manuscript and does not evaluate a live grievance system. It did not interview the original author, observe classes, test the document with workers or managers, or measure learning. Official sources were used to identify publication risks, but actual cases require current, fact-specific legal analysis. The proposed routes are educational categories and do not replace the controlling agreement, statute, rule, agency jurisdiction, or professional advice.

Conclusion

Labor Relations and Negotiation gives learners an accessible introduction to dissatisfaction, complaint, grievance, investigation, appeal, root-cause prevention, and non-court resolution. Its greatest

contribution is an eight-step managerial sequence supported by practical advice on consistency, documentation, communication, and training. Its central weakness is procedural blending: general complaint handling, technical grievance machinery, labor conciliation, voluntary arbitration, general ADR, and barangay conciliation are not sufficiently separated. A publication-ready revision should build a route-selection framework, restore labor-specific institutions, qualify jurisdictional claims, provide authentic forms and cases, add analytic rubrics and feedback, and undergo legal, editorial, accessibility, and classroom validation.

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